



Statement of Issues

11 July 2024

Aurizon Operations Limited's proposed acquisition of Flinders Logistics Pty Ltd

Purpose

1. Aurizon Operations Limited (**Aurizon**) proposes to acquire Flinders Logistics Pty Ltd (**Flinders Logistics**) and its wholly owned subsidiary Pirie Bulk Pty Ltd (**Pirie Bulk**) (the **proposed acquisition**).
2. This Statement of Issues:
 - gives the Australian Competition and Consumer Commission's (**ACCC**) preliminary views on competition issues arising from the proposed acquisition
 - identifies areas of further inquiry
 - invites interested parties to submit comments and information to assist our assessment of the issues.
3. Statements of Issues do not refer to confidential information provided by the parties or other market participants and therefore may not fully articulate the ACCC's preliminary position.

Overview of ACCC's preliminary views

4. In considering the proposed acquisition, the ACCC applies the legal test set out in section 50 of the *Competition and Consumer Act 2010* (the **CCA**). In general terms, section 50 prohibits acquisitions that would have the effect, or be likely to have the effect, of substantially lessening competition in any market.
5. The ACCC divides its preliminary views into three categories, 'issues of concern', 'issues that may raise concerns' and 'issues unlikely to raise concerns'. In this Statement of Issues there is one 'issue of concern' and one 'issue that may raise concerns'.

Issue of concern

6. The ACCC's preliminary view is that the proposed acquisition is likely to provide Aurizon with the ability and incentive to foreclose or frustrate competitors in the supply of rail haulage services for containerised bulk minerals, substantially lessening competition in the supply of such services for customers in South Australia and north-western New South Wales/Victoria.
7. The proposed acquisition would increase vertical integration by combining the largest rail haulage operator with Flinders Logistics, which provides stevedoring and port logistics services for containerised bulk mineral products at Berth 29, Port Adelaide. Market feedback indicates there are no substitutes to Berth 29 for the import and export of containerised bulk mineral products and road is not a close substitute for the haulage of these products for some customers, particularly with large volumes over long distances.

Issue that may raise concerns

8. The ACCC's preliminary view is that the proposed acquisition may provide Aurizon with the ability and incentive to foreclose or frustrate competitors in the supply of stevedoring and/or port logistics services at Berth 29, Port Adelaide and this may have the effect of substantially lessening competition in the supply of such services.
9. Post-acquisition, Aurizon would obtain the underleases for all of the established hardstand areas adjacent to Berth 29, which are critical for the storage of containers prior to being loaded or unloaded onto a vessel and for the storage of stevedoring and port logistics equipment at this berth.

Making a submission

10. The ACCC invites submissions from interested parties, particularly on the following key issues:
 - the likelihood that post-acquisition, Aurizon would be able to frustrate or foreclose rival rail haulage suppliers for containerised bulk minerals for customers in South Australia and north-western New South Wales/Victoria;
 - the likelihood that post-acquisition, Aurizon would be able to frustrate or foreclose stevedore and/or port logistics services access to Berth 29;
 - whether Berth 29 is the only berth suitable for the import and export of containerised bulk minerals in South Australia;
 - the extent to which road transport is a substitute for rail transport in the haulage of containerised bulk minerals for import or export, to and/or from Berth 29, and whether this is likely to change in the future; and
 - to what extent bulk minerals are required or preferred to be transported and/or stevedored using containers with specific characteristics (for example, rotatable containers), and whether this is likely to change in the future.

11. Interested parties should provide submissions by 5pm on 25 July 2024. Responses may be emailed to mergers@acc.gov.au with the title: *Submission re: Aurizon's proposed acquisition of Flinders Logistics*.
12. The ACCC anticipates making a final decision on 26 September 2024, however, this timeline can change. To keep up with possible timing changes and to find relevant documents, interested parties should visit the Mergers Register on the ACCC's website at www.accc.gov.au/publicregisters/mergers-registers/public-informal-merger-reviews.

Confidentiality of submissions

13. The ACCC will not publish submissions regarding the proposed acquisition. We will not disclose submissions to third parties (except our advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the CCA. Where the ACCC is required to disclose confidential information, the ACCC will notify you in advance where possible so that you may have an opportunity to be heard. Therefore, please identify any confidential information that is provided to the ACCC. Our [Informal Merger Review Process Guidelines](#) contain more information on confidentiality.

About ACCC 'Statements of Issues'

14. A Statement of Issues is not a final decision about a proposed acquisition. A Statement of Issues outlines the ACCC's preliminary views and identifies further lines of inquiry.
15. A Statement of Issues provides an opportunity for all interested parties (including customers, competitors, shareholders and other stakeholders) to ascertain and consider the primary issues identified by the ACCC. It is also intended to provide the merger parties and other interested parties with the basis for making further submissions should they consider it necessary.

The parties

Aurizon

16. Aurizon is a public corporation (ASX: AZJ) that primarily supplies rail freight services to customers throughout Australia, excluding Tasmania. It owns and operates railway locomotives and wagons to transport freight for coal, mining, industrial and agricultural industries and accordingly is an 'above rail' service provider.
17. In addition to its above rail business, Aurizon supplies 'below rail' services, which involves providing access to and managing rail infrastructure, safety, signalling and communication systems, train control, rail construction, and maintenance. Aurizon operates the Central Queensland Rail Network and the Tarcoola to Darwin railway, as well as other spurs, yards, and sidings throughout Australia. Aurizon significantly expanded its rail freight presence in South Australia and the Northern Territory with its acquisition of One Rail in 2022.

18. Aurizon supplies some logistics services outside of South Australia in relation to bulk commodities, such as road transport, stevedoring and warehousing. Aurizon currently provides stevedoring services at the Port of Newcastle, the Port of Townsville and the Port of Darwin. The proposed acquisition would result in Aurizon expanding its stevedoring services to South Australia.

Flinders Logistics

19. Flinders Logistics is a 100% owned subsidiary of Flinders Port Holdings Pty Ltd (**Flinders Port Holdings**). Flinders Port Holdings owns several other businesses, including Flinders Ports Pty Ltd (**Flinders Ports**). Flinders Ports owns and operates seven ports in South Australia, including Port Adelaide and Port Pirie. Port Adelaide is the most significant port in South Australia and facilitates the import and export of a variety of goods, such as minerals, grain, motor vehicles, petroleum, and containerised general cargo. Port Pirie is significantly smaller than Port Adelaide, and primarily handles bulk minerals, coal, and grain.
20. Flinders Logistics supplies stevedoring and port logistics services to importers and exporters of bulk commodities at Berths 18-20 and Berth 29 at Port Adelaide and at Port Pirie. Flinders Logistics supplies cargo handling services at Port Pirie through its subsidiary, Pirie Bulk Pty Ltd.

Industry background

Bulk cargo logistics

21. Bulk cargo generally refers to homogenous liquid (wet bulk) or solid particulate (dry bulk) goods transported in a loose, unpackaged form, usually distinguished from general cargo transported in shipping containers.
22. Importing or exporting bulk commodities by sea involves the following activities:
 - **Transport** between the sender/receiver and the port, either by rail or by road in wagons or trailers designed for bulk goods.
 - **Port Logistics**, which includes loading and unloading of cargo from trucks or trains, recording cargo movements, storage and warehousing, and general cargo handling using dedicated berth trucks, loaders, or other machinery.
 - **Stevedoring**, which refers to loading and unloading cargo from the ship using a variety of specialised machinery designed to handle the type of commodity. For example, reach stackers or cranes to lift bulk goods containers, shiploaders to lift loose material and drop it directly in the ship's cargo hold, or using cranes fixed to the ship itself.
23. Some market participants may define stevedoring as a sub-category of port logistics. For the purposes of this Statement of Issues, the ACCC identifies them as separate activities, noting that some market participants supply port logistics and stevedoring services together.
24. Bulk commodities are sometimes transported and loaded on to ships using specialised bulk cargo containers with removable lids ('containerised bulk'). Some market participants have developed specialised rotatable containers

designed for stevedoring bulk commodities. The rotatable containers are lifted from the berth using cranes that can rotate the container and remove the lid to empty the material into the ship's hold. This method is used to reduce dust and prevent spillage of valuable or potentially environmentally hazardous material.

Port Adelaide

25. Port Adelaide has four 'common user' berths, Berths 18-20 and Berth 29, that have the facilities to handle bulk goods (**Annexure A**).
26. Common user berths are berths for which Flinders Ports has not granted exclusive usage rights to a particular customer. The common user berths have adjacent areas for port logistics facilities, parts of which may also be designated 'common user' or leased to stevedoring or logistics suppliers for exclusive use. Flinders Ports is responsible for managing access to common user berths and areas.
27. Berth 29 is currently the only berth at Port Adelaide where containerised bulk is handled. A significant portion of Flinders Logistics' bulk logistics and stevedoring operations at Berth 29 involve the use of rotatable containers. It uses reach stackers designed to unload containers from trucks or trains, and two mobile harbour cranes equipped with devices that upend rotatable containers. The ACCC understands that Flinders Logistics is currently the only stevedore and port logistics supplier providing this service at Port Adelaide, although mobile cranes are available for hire for a tariff. For importing bulk goods, Flinders Logistics uses large hoppers that funnel material lifted from the ship on to trucks or into containers.
28. Other than Flinders Logistics, there are two providers of bulk commodity logistics and stevedoring at Port Adelaide:
 - Linx Cargo Care Group (**Linx**), which supplies logistics and stevedoring services in relation to non-containerised bulk at Port Adelaide, and has previously supplied stevedoring services at Port Pirie; and
 - Qube Holdings Ltd (**Qube**), which supplies logistics and stevedoring services in relation to non-containerised bulk at Port Adelaide, and stevedoring services at Port Pirie.

Rail freight haulage ('above rail')

29. Rail freight haulage is a component of the supply chain for producers of bulk goods imported and exported from Port Adelaide and Port Pirie. Rail operators provide 'above rail' services, including negotiating access that allow a train to run at a particular time on a rail line, and operating the rollingstock (trains, wagons) for that train service. Above rail services may also include providing access to port or intermodal facilities at times that align with a train service.
30. The type of rollingstock that a rail freight operator uses can vary according to the type of commodity being moved. For bulk commodities such as minerals and coal, products might be moved in open wagons hauled by the locomotive, or in bulk containers that can be lifted on and off the train. Access between the rail network and a port may rely on dedicated rail lines, spurs or intermodal facilities operated by the port or other third parties to enable rail freight to reach the berth.

31. The ACCC has identified four actual or potential providers of above rail haulage services to and from ports in South Australia:
- Aurizon
 - Qube, which supplies rail haulage, road haulage and logistics services throughout Australia
 - Pacific National Pty Ltd, a national rail freight business with significant operations in coal, bulk, and containerised around Australia, and
 - SCT Logistics, a national freight and logistics business.

Rail tracks ('below rail')

32. Australia's key rail freight network, the Interstate rail network, is owned and operated by the Australian Rail Track Corporation (**ARTC**). The Interstate rail network links Port Adelaide and Port Pirie with Victoria, New South Wales, Queensland, and Western Australia. ARTC is exclusively a below rail operator, maintaining and facilitating access to its network. The ACCC regulates access to the Interstate rail network through a voluntary undertaking provided by the ARTC.
33. Aurizon is the below rail operator for the Tarcoola to Darwin railway, which it has leased from the ARTC. Aurizon also operates a number of sidings and rail yards connected to the Interstate rail network. Access to these railways is regulated by the Essential Services Commission of South Australia (**ESCOSA**) under the *Railways (Operations and Access) Act 1997 (SA)*, which requires below rail operators to provide access to certain railway services without discrimination and on fair commercial terms.

Road freight haulage

34. Road transport is an important aspect of the bulk commodity supply chain, particularly for customers without a direct rail link to the interstate rail network. Some producers of bulk commodities may exclusively use road transport for haulage to domestic customers or a port. Alternatively, some producers may use road for intermediate legs, such as from the mine to a rail depot or from rail depot to domestic customer.
35. The ACCC has identified at least five major providers of road haulage services to and from ports in South Australia:
- Qube
 - SCT Logistics
 - Toll Group
 - Symons Clark Logistics, and
 - Linfox.

The proposed transaction

36. Aurizon proposes to acquire Flinders Logistics through a share sale agreement.
37. Under the proposed acquisition, Aurizon would acquire the assets associated with Flinders Logistics' stevedoring operation and also enter into underleases for certain land currently used by Flinders Logistics or Pirie Bulk.
38. There is no direct overlap in activities between Aurizon and Flinders Logistics.

Market definition

39. The ACCC's preliminary view is that the relevant markets in which to consider the effect of the proposed acquisition are markets for the supply of:
 - Rail haulage services for the import and export of containerised bulk minerals for customers in South Australia and north-western New South Wales/Victoria; and
 - Stevedoring and/or port logistics services for bulk commodities at Berth 29, Port Adelaide.
40. The ACCC is considering several issues that may also affect our final views on the appropriate market definition, including:
 - the suitability of alternative berths at Port Adelaide or alternative ports in South Australia or interstate to Berth 29 for importing and exporting bulk minerals;
 - the extent that specialised containerisation is required for transporting and stevedoring bulk minerals; and
 - the extent that road haulage is a substitute for rail haulage to transport bulk minerals to or from ports.

Issue of concern: Foreclosure or frustration of rivals in the supply of rail haulage services for containerised bulk minerals

41. The proposed acquisition would combine Australia's largest rail freight operator with Flinders Logistics, which provides stevedoring and port logistics services for bulk and limited break-bulk cargo at Berths 18-20 and Berth 29 at Port Adelaide.
42. The ACCC's preliminary view is that post-acquisition Aurizon may have the ability and incentive to foreclose or frustrate rivals in the supply of rail haulage services for containerised bulk minerals for customers in South Australia and north-western New South Wales/Victoria. The ACCC is also considering the extent to which Aurizon may have the ability and incentive to engage in such foreclosure via pricing, bundling or tying of its rail haulage, stevedoring and/or port services; or by frustrating rival rail haulage providers' access to these services.

43. The ACCC is concerned that a lessening of competition in the supply of these services could result in higher prices, less investment in supply chain infrastructure, or lower quality or innovation for bulk minerals customers.

Berth 29, Port Adelaide

44. Market feedback indicates that Berth 29 at Port Adelaide is critical to the import and export of containerised bulk minerals, such as mining products (for example, base metal concentrates) and mineral sands for customers in South Australia and north-western New South Wales-Victoria.
45. Market feedback indicates that Berth 29 is the only berth in South Australia capable of handling containerised bulk mining products and mineral sands due to several features unique to the berth, including:
- A purpose-built rail siding adjacent to the berth that is linked via a spur to the ARTC Interstate Mainline. Information available to the ACCC indicates that other ports or berths in South Australia and regional Victoria do not have commensurate rail access to the main interstate rail networks or, where they do, the berth is either capacity constrained or specialised for other types of cargo (for example, general cargo containers, chemicals, or grain);
 - Berth strength to accommodate equipment, such as two mobile harbour cranes, container rotation attachments, and reach stackers. This equipment is used to handle containers, move them around the berth and load or unload containers directly onto a vessel or onto the berth for storage. The ACCC notes that Flinders Ports has modified Berth 20, increasing its strength to accommodate a mobile shiploader for one of its export customers;
 - Sufficient laydown and hardstand space or storage facilities for these products.
46. The ACCC is continuing to assess the substitutability of alternative berths at Port Adelaide or other ports in South Australia and interstate to Berth 29 for these commodities. Market feedback indicates that Whyalla and Port Pirie can be difficult to access on a long-term basis, as required by mining and minerals customers.
47. The ACCC understands that Flinders Logistics is currently the only supplier of port logistics and stevedoring services at Port Adelaide in relation to containerised bulk commodities.

Foreclosure of rival rail haulage suppliers

Rail siding

48. Flinders Ports is the infrastructure owner and Rail Infrastructure Manager for the rail spur leading into Berth 29, and controls access to this spur. The spur includes two rail sidings which run adjacent to the berth.
49. Aurizon currently performs the shunting and marshalling of all trains into and out of the Berth 29 rail spur under a Rail Management Agreement with Flinders Ports. Aurizon is also responsible for managing the track between the ARTC

main line connection and the switch for the Berth 29 rail spur. This section of track is licenced to Aurizon under a Licence Agreement and is subject to the SA Rail Access Regime.

50. The ACCC understands that to obtain access to the railway siding at Berth 29, a rail haulage supplier must request from the ARTC track access times on the main line that connects into Berth 29 and the windows available at Berth 29. The rail haulage supplier will then inform Flinders Logistics of the rail windows that have been allowed into the Berth 29 rail siding.
51. Flinders Logistics will consider the current work profile at Berth 29, available times, and whether the time window available is sufficient for the task required. A rail safety interface agreement is required between Flinders Ports, Flinders Logistics, and the rail haulage supplier before a train can enter the Berth 29 rail siding.
52. Post-acquisition, Flinders Ports would continue to control access to the Berth 29 rail spur.

Rail siding staging area

53. Flinders Logistics currently provides loading and unloading services for all trains coming into Berth 29, regardless of the rail haulage supplier or their customer. As part of this service, Flinders Logistics relies on a designated staging area (**Annexure A, Area B**) to load or unload containers from the train. It is also responsible for transporting containers between the staging area and long-term storage areas (**Annexure A, Areas C-E**) until the customer's containers are ready to be stevedored or transported by rail haulage again. To obtain access to the established laydown or hardstand areas, service providers or customers make a request to Flinders Ports to use these areas.
54. Post-acquisition, Aurizon would have underleases for the designated staging area (Area B) and all established storage areas (Areas C-E) at Berth 29, and would be required to provide loading and unloading services to third party operators on an open-access basis.
55. The ACCC expects that Flinders Ports currently has the ability to foreclose stevedores, rail haulage and port service providers' access to the rail siding and the established storage and hardstand areas at Berth 29, given its ownership and management of these areas and provision of loading and unloading services. Post acquisition, Aurizon would have control over the staging and long-term storage areas and the loading and unloading of trains.
56. The ACCC is concerned that Aurizon's incentives to provide access likely differs to the incentives of Flinders Ports. Flinders Ports (and by extension, its subsidiary Flinders Logistics) is unlikely to have an incentive to foreclose or frustrate rail haulage service providers' access to the rail siding, staging and long-term storage areas since it does not participate in rail haulage itself.
57. The ACCC is concerned that post-acquisition, Aurizon, as a vertically integrated rail operator, may have an incentive to raise prices or frustrate rival rail haulage providers' access to the staging area at Berth 29 or give itself priority access times or locations so as to increase rivals' costs and make its own rail haulage services more attractive to customers.

58. The ACCC is concerned that foreclosing or frustrating rival rail haulage suppliers at Berth 29 would have the likely effect of substantially lessening competition in the market for the supply of rail haulage services for containerised bulk minerals for customers in South Australia and north-western New South Wales/Victoria.

Access Regulation

59. Market participants have expressed concern that the rail siding, staging area and hardstand areas at Berth 29 are not presently subject to any access regulation. The ACCC is continuing to consider the regulatory status of these areas.

Road Haulage

60. The ACCC is considering the extent to which road haulage is a substitute for rail haulage of bulk commodities or certain types of bulk commodities for import or export.
61. Market feedback indicates that road haulage can be a substitute for the transport of some bulk cargo, especially for bulk cargo being transported over shorter distances or for lower volumes. Road may be considered more flexible than rail in certain circumstances because goods can be transported to locations without existing rail infrastructure and trucks are not subject to the same scheduling and access requirements as rail.
62. However, market feedback indicates road is not a substitute for some customers who require haulage over longer distances or for large volumes. The ACCC is also considering if there circumstances in which bulk minerals are not able to be transported via road haulage for safety.
63. Market feedback indicates that mining volumes in the region are likely to increase in the near future and that some customers may see rail transport as the only viable form of transport for exporting the volume of products required. In addition, the ACCC understands that mining approvals are increasingly being linked to a proponent's future decarbonisation position and that this is creating significant incentives for mining companies to choose rail haulage over road.

Opportunities for new development at or near Berth 29

64. The ACCC understands there is scope for development of the vacant land east of the rail siding (**Annexure A**, teal shaded area), where another rail siding or storage hardstand area could be constructed. The ACCC is considering this further, particularly in relation to whether competing rail haulage providers could seek to bypass supply of unloading services from Aurizon and establish their own sidings or storage hardstand area. The ACCC considers the time and cost associated with establishing a competing siding is relevant to our competition assessment.

The ACCC invites comments from market participants on its concerns in relation to Aurizon's ability and incentive to foreclose or frustrate rivals in the supply of rail haulage services for containerised bulk minerals for customers and the competitive impact of any such strategy. In particular, market participants may wish to comment on the following:

- whether Berths 18-20 at Port Adelaide are a substitute for Berth 29 for bulk mineral products, and the reasons why / why not

- whether other ports within South Australia (such as Whyalla) or interstate (such as Newcastle, Geelong, or Portland) are a substitute for Berth 29 for bulk mineral products, and the reasons why / why not
- the environmental or economic reasons why certain bulk mineral products may need to be transported via specialised rotatable containers
- the extent to which road haulage is a substitute for rail haulage of bulk minerals and whether there are particular products, volumes and/or locations for which road haulage is not substitutable
- estimates of the time and cost involved in switching from rail to road haulage
- factors affecting any investment by market participants in port logistics infrastructure at Berth 29 or elsewhere, such as hardstand areas, storage and maintenance facilities, or rail sidings, and
- the benefits to customers from acquiring multiple services (that is, a combination of rail haulage services, stevedoring services and/or port logistics services) from the same supplier.

Issue that may raise concerns: Foreclosure or frustration of rivals in the supply of stevedoring services and/or port logistics services at Berth 29, Port Adelaide

65. The ACCC is also considering Aurizon's ability and incentive post-acquisition to foreclose or frustrate competing stevedores or port logistics suppliers' access to hardstand and laydown areas Berth 29, Port Adelaide and the competitive impact of any such approach.
66. As part of the acquisition, Aurizon would acquire the underleases for the established hardstand areas adjacent to Berth 29. Market feedback indicates that these hardstand areas are critical for the storage of containers prior to being loaded or unloaded onto a vessel and for stevedoring and port logistics equipment.
67. Market feedback indicates that while Aurizon would not control the issuing of stevedore licenses, through its acquisition of the underleases, this would effectively prevent stevedores from being able to compete, notwithstanding the fact that they may have been granted a license by Flinders Ports.
68. The ACCC is concerned that Aurizon's incentives to provide access to the storage and hardstand areas may differ to the incentives of Flinders Logistics. Much like access to the rail siding at Berth 29, Flinders Ports (and by extension, its subsidiary Flinders Logistics) is unlikely to have an incentive to frustrate rival stevedores or port logistics suppliers' access to the storage and hardstand areas in order to maximise throughput through the berth.
69. The ACCC is concerned that post-acquisition, Aurizon, as a vertically integrated provider of rail haulage, stevedoring and port logistics, may have an incentive to foreclose or frustrate rival stevedores and port logistics suppliers' access to the hardstand areas at Berth 29, effectively preventing rival stevedores from being able to compete.

70. The ACCC notes that there is undeveloped vacant land available for lease adjacent to the existing Berth 29 operations (**Annexure A**, Areas G and H), including an area opposite the Berth 29 rail siding (**Annexure A**, teal shaded area) from which a second loading and unloading operation or further sheds/storage could be established.
71. The ACCC intends to examine the suitability of this land for stevedoring and port logistics services, including the level of investment that would be required to develop the land, the time required to establish this as an alternative and the related expected profitability of such an investment.

The ACCC invites comments from market participants on its concerns in relation to Aurizon's ability and incentive to foreclose rival stevedores and port logistics service providers at Berth 29, Port Adelaide and the impact of any such strategy on competition. In particular, market participants may wish to comment on the following:

- the extent to which stevedoring and port logistics services are a factor a customer may consider when selecting a port,
- the extent to which the areas available for development at Berth 29 (Annexure A, Areas G and H and the teal shaded area) would be sufficient for stevedores and port logistics suppliers and the timeframes and investment required for development.

Issues unlikely to raise concerns: Foreclosure or frustration of rivals in the supply of rail haulage, stevedoring or port logistics services, Port Pirie

72. Some market participants have expressed concern that post-acquisition Aurizon would have the ability and incentive to foreclose or frustrate rivals in the supply of rail haulage, stevedoring or port logistics at Port Pirie.
73. The ACCC's preliminary view is that the proposed acquisition is unlikely to substantially lessen competition in the supply of rail haulage, stevedoring, or port logistics services at Port Pirie as Aurizon will not acquire any assets or underleases which are critical to the supply of these services.

ACCC's future steps

74. As noted above, the ACCC invites submissions from market participants on each of the issues identified in this Statement of Issues and on any other issue that may be relevant to the ACCC's assessment of this matter. Submissions should be emailed to mergers@accc.gov.au by no later than 5pm on 25 July 2024.
75. The ACCC will finalise its view on this matter after it considers submissions invited by this Statement of Issues.
76. The ACCC intends to publicly announce its final view by 26 September 2024. However, the anticipated timeline may change in line with the *Informal Merger Review Process Guidelines*. A Public Competition Assessment explaining the ACCC's final view may be published following the ACCC's public announcement.

Annexure A: Berth 29, Port Adelaide

